

M/S. Swaroop Pharmaceuticals Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 March 2023 · WRIT - C No. 51712 of 2014 · **Writ dismissed for want of prosecution.**

HEADNOTE

Writ seeking to quash an undated additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005, in which the Court had on 24.9.2014 restrained the licensee from demanding additional security until further orders without prejudice, dismissed for want of prosecution when none appeared for the petitioner on 16.3.2023.

FACTUAL SUMMARY

M/s Swaroop Pharmaceuticals Pvt. Ltd. challenged an undated demand notice issued by Dakshinanchal Vidyut Vitran Nigam Ltd. for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005. On 24 September 2014 the High Court connected the writ with W.P. (C) No. 51884 of 2009 and, following an earlier interim order in a similar petition (W.P. No. 51844 of 2009), restrained the respondents from demanding additional security until further orders, without prejudice. On 16 March 2023 none appeared for the petitioner even in the revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security demand

HOLDING

A writ petition seeking quashing of an undated demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005, in which the Court had on 24.9.2014 restrained the licensee from demanding additional security until further orders without prejudice to the parties' rights, was dismissed for want of prosecution when none appeared for the petitioner even in the revised call. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ADDITIONAL-SECURITY DEMAND UNDER CLAUSE 4.20

The 24.9.2014 restraint was granted without prejudice and by reference to a similar interim order; the 16.3.2023 dismissal for want of prosecution did not decide whether the undated notice was lawful. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 7.10.2009			1	Referred